

## Representations and Certifications Supplement

Stanford University has executed and is engaged in the performance of Prime Contract DE-AC02-76SF00515 with the United States Department of Energy (DOE), for the management and operation of SLAC National Accelerator Laboratory in Menlo Park, CA. The following representations and certifications must be completed, and this form must be signed and returned with the Offeror's proposal.

### BUSINESS INFORMATION

Business Name: \_\_\_\_\_

Business Address: \_\_\_\_\_

"Doing Business As" (DBA): \_\_\_\_\_

Unique Entity Identifier (UEI): \_\_\_\_\_

Duns and Bradstreet Number (DUNS): \_\_\_\_\_ Tax Identification Number (TIN): \_\_\_\_\_

### SYSTEM FOR AWARD MANAGEMENT (SAM) ELECTRONIC REPRESENTATION AND CERTIFICATION APPLICATIONS:

The Offeror certifies that the annual Representations and Certifications available electronically via the System for Award Management ([SAM](#)) have been completed and by submission of this offer, the Offeror further certifies that the information contained therein is current, accurate, complete, and fully responsive to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer. Those Representations and Certifications are incorporated in this offer by reference (see FAR 4.1201).

### EMPLOYMENT VERIFICATION ELIGIBILITY ([E-VERIFY](#))

*(Applicable to proposals exceeding \$3,500)*

Offeror represents that:

- ☐ E-Verify is not applicable based on paragraph (e) of FAR 52.222-54 Employment Eligibility Verification.
- ☐ it is ☐ is not currently enrolled in E-Verify
- ☐ if not currently enrolled, it will enroll in E-Verify with 30 calendar days of subcontract award.
- ☐ It will include FAR 52.222-54 in applicable lower-tier subcontracts.

### EMPLOYEE-VENDOR RELATIONSHIP CERTIFICATION

An affirmative response in the following certification will require the University to evaluate your offer to determine whether a conflict of interest exists. A determination that a conflict of interest exist may necessitate rejection of your offer. The fact that an employee or former employee of Stanford University, or near relative of an employee owns, controls, or has a significant financial interest in your organization will not, in and of itself, necessarily be cause for rejection of your offer.

### DEFINITIONS

Employee: Any individual who is presently employed by any entity of Stanford University, including the Stanford Linear Accelerator Center. Former Employee: An individual who has retired or separated from Stanford University, was dismissed, or was otherwise formerly employed by the University.

Near Relative: The employee's spouse, child, parent, brother, sister, son-in-law, daughter-in-law, father-in-law, mother-in-law, brother-in-law, or sister-in-law of a Stanford University employee, household member, and step-relatives in the same relationship.

Near relative also includes the domestic partner of a university employee and a relative of the domestic partner in one of the foregoing relationships.

Control: Having some right to direct or transfer property (even though there exists no actual title to the property, such as trusteeship, power of appointment, or contract) that could be the basis for influence upon the selection or decisions of an organization's management personnel.

Significant Final Interest: Owning or controlling more than 10 percent of the organization.

#### CERTIFICATIONS

To the best of my knowledge and belief, an employee or former employee of Stanford University nor a near relative of an employee:

☐ does ☐ does not own, control, or have significant financial interest in the Offeror's organization

If an employee or former employee of Stanford University or near relative thereof does own, control, or have significant financial interest in the Offeror's Organization, identify the employees and the Stanford University entity where that person is employed:

Employee Name: \_\_\_\_\_

Stanford University Entity: \_\_\_\_\_

#### TOXIC CHEMICAL RELEASE REPORTING

*(Applicable if offer exceeds \$100,000.)*

(a) Executive Order 13148, of April 21, 2000, Greening the Government through Leadership in Environmental Management, requires submission of this certification as a prerequisite for subcontract award.

(b) By signing this offer, the Offeror certifies that –

(1) As the owner or operator of facilities that will be used in the performance of this subcontract that are subject to the filing and reporting requirements described in section 313 of the Emergency Planning and Community Right-to-Know Act of 1986 (EPCRA) (42 U.S.C. 11023) and section 6607 of the Pollution Prevention Act of 1990 (PPA) (42 U.S.C. 13106), the Offeror will file and continue to file for such facilities for the life of the subcontract the Toxic Chemical Release Inventory Form (Form R) as described in sections 313(a) and (g) of EPCRA and section 6607 of PPA; or

(2) None of its owned or operated facilities to be used in the performance of this subcontract is subject to the Form R filing and reporting requirements because each such facility is exempt for at least one of the following reasons: *(Check each block that is applicable).*

- ☐ (i) The facility does not manufacture, process, or otherwise use any toxic chemicals listed in 40 CFR 372.65;
- ☐ (ii) The facility does not have 10 or more full-time employees as specified in section 313(b)(1)(A) of EPCRA, 42 U.S.C.
- ☐ (iii) The facility does not meet the reporting thresholds of toxic chemicals established under section 313(f) of EPCRA, 42 U.S.C. 11023(f) (including the alternate thresholds at 40 CFR 372.27, provided an appropriate certification form has been filed with EPA);

- ☐ (iv) The facility does not fall within the following Standard Industrial Classification (SIC) codes or their corresponding North American Industry Classification System sectors:

(A) Major group code 10 (except 1011, 1081, and 1094).

(B) Major group code 12 (except 1241).

(C) Major group codes 20 through 39.

(D) Industry code 4911, 4931, or 4939 (limited to facilities that combust coal and/or oil for the purpose of generating power for distribution in commerce).

(E) Industry code 4953 (limited to facilities regulated under the Resource Conservation and Recovery Act, Subtitle C (42 U.S.C. 6921, et seq.), or 5169, or 5171, or 7389 (limited to facilities primarily engaged in solvent recovery services on a contract or fee basis); or

- ☐ (v) The facility is not located in the United States or its outlying areas.

**ANTI-KICKBACK**

*(Applicable if offer exceeds \$100,000)*

By submission of this offer, the Offeror certifies that it has not provided, attempted to provide, offered to provide, solicited, accepted, or attempted to accept any kickback; and has not included, directly or indirectly, the amount of any kickback in the offer. "Kickback" means any money, fee, commission, credit, gift, gratuity, thing of value, or compensation of any kind that is provided, directly or indirectly, to any Government prime contractor (e.g., the University), prime contractor employee, subcontractor at any tier, or employee of a subcontractor at any tier, for the purpose of improperly obtaining or rewarding favorable treatment in connection with a government prime contract or in connection with a subcontract at any tier relating to a Government prime contract.

**EXPORT CONTROL**

(a) The Offeror represents that items being furnished under any resulting agreement are, are not Trigger List Items as defined below.

Trigger List Items: [Nuclear Suppliers Group](#)

Trigger List items are a listing of equipment, components, or materials especially designed for nuclear applications and are export controlled.

These items are on the safeguards list of the International Atomic Energy Agency identified above. The regulatory authority is the US Nuclear

Regulatory Commission (10 CFR 110). If the items are Trigger List items, provide the following information:

Manufacturer's Name: \_\_\_\_\_

Description: \_\_\_\_\_

Commodity Category: \_\_\_\_\_

(b) The Offeror represents that items being furnished under any resulting agreement are, are not articles, services, and related technical data designated as defense articles or defense services as defined in the United States Munitions List ([USML](#)) of the International Traffic in Arms Regulations (ITAR), [22 CFR 120-130](#).

The regulatory authority is the US Department of State, Directorate of Defense Trade Controls ([DDTC](#)).

If the items or services are subject to the USML (ITAR), provide the following information:

Manufacturer's Name: \_\_\_\_\_

Description: \_\_\_\_\_

Commodity Category: \_\_\_\_\_

(c) The Offeror represents those items being furnished under any resulting agreement are, are not Dual Use Items 500 or 600 series as defined below.

Dual Use Items 500 or 600 series: [Bureau of Industry and Security U.S. Department of Commerce](#)

Dual Use Military and Space Items that were previously on the Munitions List under the Department of State and have been moved to the Commerce Control List 15 CFR 730 – 774. If the items are Dual Use Military and Space, provide the following information:

Manufacturer's Name: \_\_\_\_\_

Description: \_\_\_\_\_

Export Control Classification Number: \_\_\_\_\_

(d) To the extent the items being furnished under any resulting agreement are controlled under other portions of the Commerce Control List of the Export Administration Regulations, 15 CFR 730 et seq., provide the following information:

Manufacturer's Name: \_\_\_\_\_

Description: \_\_\_\_\_

Export Control Classification Number: \_\_\_\_\_

#### **SIGNATURE**

Note: A person authorized to make legally binding commitments on behalf of the offeror must sign below. Signature constitutes a representation that reasonable and prudent inquiry has been made to ascertain the true accurate basis of all statements. Statements which a person knows or has reason to know are false, fictitious, or fraudulent may result in criminal or civil penalties, as prescribed in 18 USC 1001 and 31 USC 3802 (a) (2). These representatives and Certifications shall remain in effect for a period of one (1) year from the date signed and shall satisfy any subsequent proposal's requirements during that one-year period. The Offeror shall notify SLAC of any changes that may occur in any if the representation or certifications during that period.

Authorized Signature: \_\_\_\_\_

Print Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_